original

BY-LAWS

Article I

DEFINITIONS

"Association" means Hunter's Ridge Maintenance Association, a nonprofit corporation organized and existing under the laws of the State of Delaware.

"Hunter's Ridge" means that certain subdivision located in Mill Creek Hundred, New Castle County and State of Delaware, known as Hunter's Ridge and more particularly described and set forth on Record Major Land Subdivision Plan of Hunter's Ridge, prepared by Franco R. Bellafante, Inc., recorded the 12th day of January, 1989 in the Office of the Recorder of Deeds in and for New Castle County, Delaware at Microfilm Record No. 9600, as the said plan may be amended from time to time

"Documents" means the aforesaid Record Major Land Development Plan, as amended as of the date hereof, and as the same may be amended subsequently hereto, together with those certain Declarations of Restrictions affecting Hunter's Ridge, made by Granville Development Corporation, a Delaware corporation, made the 13th day of December, 1988, and recorded in the office aforesaid at Deed Record Book 815, Page 305 and a Declaration of Restrictions dated the 19th day of January, 1989, recorded in the office aforesaid at Deed Record Book 819, Page 330, together with any amendments thereto subsequently made, and any additional declarations of restrictions affecting Hunter's Ridge which the said Granville Development Corporation, its successors and assigns, may make hereafter. The Documents are incorporated herein by reference.

"Association Property" means the Private Open Space and the Traffic Islands.

"Rules and Regulations" means the rules and regulations promulgated pursuant to the provisions of Article V(1)(c) hereof.

Article II

LOCATION

The principal office of the Association shall be located at 201 Bridle Path Drive, Newark, Delaware 19711.

Article III

MEMBERSHIP

1. *Eligibility*. The Members of the Association, the classes of membership and the voting rights of each class of members are determined by Paragraph Fourth of its Certificate of Incorporation and by the Documents.

2. *Rights and Perquisites of Membership*. Subject to such rules and regulations as the Board of Directors may from promulgate, each Member is entitled to the use and enjoyment of the Private Open Spaces in accordance with the Documents. Such rights may be delegated to and exercised by all members of a member's family who reside in Hunter's Ridge, any of the member's tenants who reside there under a lease for a term of one year or more, and the guests of any thereof. Each Member shall notify the Secretary of the Association in writing of the name and relationship to the member of any persons who shall be entitled to exercise such rights under this Section. The rights and privileges of such person are subject to suspension by the Board in the same manner and for the same reasons as those of any Member in accordance with the Rules and Regulations.

Article IV

MEETINGS OF MEMBERS

1. *Annual Meetings*. The Annual Meeting of the Members shall be held at the office of the Association specified in Article II above or at any other address specified in the Notice of the Meeting, on the first Tuesday in March in each year, at the hour of 8:00 p.m., commencing on the first Tuesday in March in the year 1991.

2. *Special Meetings*. Special meeting of the Members for any purpose may be called at any time by the President, the Executive Vice-President, or by any three or more Directors. The Secretary shall call a special meeting upon written request of the members who have a right to vote one-fourth (¼) of all of the votes of the entire membership.

3. *Notices*. Notice of meetings shall be given to the Members by the Secretary . Notice may be given to the Member either personally, or by mailing a copy of the notice, postage prepaid, to the address appearing on the books of the Corporation. Each Member shall register his address and any change in address with the Secretary. Notice of any meeting, regular or special, shall be mailed not less than

ten nor more than 50 days in advance of the meeting and shall set forth the purposes of the meeting.

4. *Proxy Voting*. At any membership meeting the presence, whether in person or by proxy, of Members entitled to vote not less than sixty percent (60%) of the total membership vote, shall constitute a quorum for the transaction of business. All proxies shall be in writing and filed with the Secretary of at the commencement of the meeting. Any proxy given by a person who shall not be a qualified Member at the date of the meeting and any proxy given more than 11 months before the date of the meeting shall be void.

Article V

BOARD OF DIRECTORS

1. *Membership and Powers*. The Association shall be governed by a Board of Directors in accordance with Paragraph Seventh of Certificate of Incorporation of the Association. There shall be three (3) or more Directors. Without limiting the generality of the preceding sentence, or any power vested in it by law, the Board of Directors shall have the power (a) to appoint and remove at its pleasure all officers, agents and employees of the Association, prescribe their duties, fix their compensation and require of them security or fidelity bonds as it may deem expedient, and nothing contained in these By-Laws shall be construed to prohibit the employment of any Member, officer or director of the Association in any capacity whatsoever; (b) to establish, levy , assess and collect the annual assessment and all other charges referred to in the Documents; (c) to adopt and publish rules and regulations governing the use of Association property, and the personal conduct of Members, their family, their tenants, and their guests with respect thereto; (d) to exercise for the Association all powers, duties and authority vested in or delegated to this Association, except those expressly reserved to the Members; and (e) in the event any member of the Board of Directors of this Association shall be absent from three consecutive regular meetings of the Board of Directors, the Board may by action taken at the meeting in which such third absence occurs declare the office of said absent Director to be vacant.

2. *Duties*. It shall be the duty of the Board of Directors (a) to cause to be kept a full, true and accurate record of its acts and corporate affairs and to present a statement thereof to the Members at the Annual Meeting of the Members or at any special meeting when requested in writing in accordance herewith; (b) to supervise all offi-

cers, agents and employees of this Association, and to see that their duties are properly performed; (c) in accordance with the Documents, (i) to fix the amount of the annual assessment against each lot as soon as may be practicable after the beginning of each calendar year and in any event before March 1 of each year; (ii) to fix the amount of special assessments from time to time; (iii) to prepare a roster of the properties and assessments applicable thereto which shall be kept in the office of the Association and shall be open to inspection by any Member; and (iv) to send written notice of each assessment to every Owner subject thereto; (d) to issue or to cause an appropriate officer to issue, upon demand by any person a certificate stating whether any assessment has been paid, which shall be conclusive evidence that any charge stated therein has or has not been paid.

Vacancies. Vacancies in the Board of Directors shall be filled by the affirmative vote of a majority of the remaining Directors though less than a quorum of the Board of Directors and nay such appointed Director shall hold office for the unexpired term of his predecessor in office.

Article VI

DIRECTORS' MEETINGS

1. *Annual Meetings.* the Annual Meeting of the Board of Directors shall beheld immediately following adjournment of the Annual Meeting of the Members in each year.

2. *Triannual Meetings.* A regular meeting of the Board of Directors shall be held at the office of the Association specified in Article II above on the first Tuesday of the months of June, September and December at 8:00 p.m.; provided that the Board of Directors may, by resolution, change the day and hour or the place of holding such regular meeting. If the day of the regular meeting shall fall upon a holiday, the meeting shall be held at the same hour on the first day following which is not a holiday.

3. *Notices; Waiver.* No notice need be given for the Annual or any regular meeting of the Board. Notice of any special meeting shall be sufficient if mailed to each Director, postage prepaid, at his address as it appears on the records of the Association, at least three days before the meeting or given personally or by telephone not later than the day before the meeting. No notice need be given to any Director who attends the meeting, or to any Director who in writing (before or after the meeting) waives such notice.

4. *Special Meetings.* Special meetings of the Board of Directors shall be called by the Secretary upon request by any officer of the Association or by any two Directors. The action of a majority of the Board, although not at a regularly called meeting, shall be valid and effective in all respects if the record of the meeting shall be assented to in writing by all members of the Board.

5. *Quorum.* At all meetings of the a majority of the Board of Directors shall constitute a quorum, and, except as otherwise provided by law or by the By-Laws, the act of a majority of the Directors present and constituting a quorum shall be the act of the Board.

Article VII

Election of Directors

1. *Ballots.* The election of Directors shall be by written ballot as hereinafter provided. At each Annual Meeting or at any special meeting called for the purpose of electing Directors, the Members or their proxies may cast, in respect of each vacancy, as may votes as they are entitled to case under the Certificate of Incorporation of the Association and the Documents. The nominees receiving the largest number of votes shall be elected.

2. *Nominations; Nominating Committee.* Nominations for election to the Board of Directors shall be made by the Nominating committee, which shall consist of a Director, who shall be the Chairman, and one or more Members of the Association, or an officer of a corporate member. The Nominating Committee shall be appointed by the Board of Directors prior to each Annual Meeting of the Members to serve during such Annual Meeting and until the next Annual Meeting or until its successor shall have been duly designated and qualified. The members of the Nominating Committee shall be announced at each Annual Meeting of the Members.

3. *Nominees.* The Nominating Committee shall make as many nominations for election to the Board of Directors as it shall in its discretion determine, but not less than the number of vacancies to be filled. Such nominations may be made from among Members or nonmembers, as the Committee in its discretion shall determine. Nominations shall be placed on a written ballot as provided in Section 4 and shall be made in advance of the time fixed in Section 4 for the mailing of such ballots to the Members.

4. *Procedure.* All elections of the Board of Directors shall be made on written ballots which shall (a) describe

the vacancies to be filled; (b) set forth the names of those nominated by the Nominating Committee for such vacancies; and (c) contain a space for a write-in vote by the members for each vacancy. Such ballot shall be prepared and mailed by the Secretary to the Members at least 14 days in advance of the date set forth therein for a return, which shall be a date not later than the day before the Annual Meeting or any special meeting called for the purpose of electing Directors.

5. *Voting*. Each Member shall be mailed a ballot on which he may cast the number of votes to which he is entitled. The completed ballot shall be returned in the manner hereinafter outlined. The ballot shall bear on its fact the name and signature of the Member, the number of votes being cast and such other information as the Board of Directors may determine will serve to establish his right to cast the vote or votes stated therein. The ballot shall be returned to the Secretary at such an address as may be clearly designated by the Secretary.

6. *Processing*. Upon the receipt of each return, the Secretary shall immediately place it in a safe place. On or prior to the day set for the meeting at which the elections are to be held, and on or after the return date, the envelopes shall be turned over, unopened, to an Election Committee which shall consist of three persons appointed by the Board of Directors. The election Committee shall adopt a procedure which shall (a) establish that the Member is entitled to case either personally or by proxy, the number of votes indicated on the ballot; and (b) that the signature of the Member on the ballot is genuine; and (c) if the vote is by proxy, that the proxy has been filed with the Secretary as provided in Article IV, Section 4, and that such proxy is valid. After the procedure has been completed relative to a ballot the count of the vote shall be taken, and the results thereof shall be announced at the meeting in respect of which the vote shall be taken. All ballots and proxies as well as any continuing tally of the votes shall be kept by the Election Committee, when not being processed, in a safe place. The Ballots shall be retained for 90 days after the meeting and then destroyed.

Article VIII

Officers

1. *Offices*. The officers of the Association shall be a President, one or more Vice-Presidents, Secretary, one or more Assistant Secretaries and a Treasurer. The President

and one of the Vice-Presidents shall be members of the Board of Directors.

2. *Election By Board of Directors.* All officers shall be elected at such Annual Meeting of the Board, and each officer shall hold office until the next annual Meeting of the Board and until his successor shall have been duly elected and qualified or until his earlier death, resignation, or removal in accordance with the By-Laws. The officers shall be chosen by a majority vote of the Directors.

3. *President; Duties.* The President shall be chief executive officer of the Association and as such shall have general supervision of the affairs and property of the Association and over its several officers, subject to the direction of the Board of Directors. The President shall, if present, preside overall meetings of the Board of Directors, and shall generally do and perform all acts incident to the officer of President. He may sign in the name and on behalf of the Association all notes, leases, mortgages, deeds and all other written instruments authorized by the Board of except where the Board shall delegate the execution thereof to some other officer or agent of the Association.

4. *Vice-Presidents; Duties.* The Vice-Presidents, in the order named if there be more than one, shall perform all the duties of the President in the event of his absence or disability, and when so acting shall have all of the powers and be subject to all restrictions placed upon the President.

5. *Secretary; Duties.* The Secretary shall act as Secretary of the Board of Directors and shall record the votes and keep the minutes of all proceedings in a book to be kept for the purpose. He shall sign all certificates of membership. He shall keep the records of the Association. He shall record the names and addresses of all Members of the Association, shall see that all notices are duly given as required by the By-Laws or applicable law, and shall be the custodian of the corporate seal.

6. *Treasurer; Duties.* The Treasurer shall receive and deposit in bank accounts approved by the Board all moneys of the Association and shall disburse such funds as directed by a resolution of the Board of Directors; provided, however,that a resolution of the Board of Directors shall not be necessary for the disbursements made in the ordinary course of business conducted within the limits of a budget adopted by the Board. The Treasurer and the President or a Vice-President shall sign all checks and notes of the Association.

7. *Books and Accounting.* The Treasurer shall keep proper books of account and cause an annual audit of the Association's books to be made by a certified public accountant at the completion of each fiscal year. He shall prepare an annual budget and an annual balance sheet statement and the budget and balance sheet statement shall be presented to the membership at its Annual Meeting.

Article IX

COMMITTEES

1. *Standing Committees.* Standing committees of the Association shall be the Nominating Committee, the Rules Committee, the Recreation Committee, the Maintenance Committee, the Publicity Committee, and the Audit Committee. Unless otherwise provided herein each committee shall consist of a Chairman and two or more members as determined by the Board, at least one of whom shall be a Director. Each committee shall be appointed by the Board of Directors at is annual meeting to serve until the next Annual Meeting of the Board and until its successor shall have been duly elected and qualified, except that the Nominating Committee shall be appointed in accordance with Article VII(2) hereof. The Board of Directors may appoint such other committees as it deems desirable.

2. *Nominating Committee.* The Nominating Committee shall have the duties and functions described in Article VII.

3. *Rules committee.* The Rules Committee shall, at the request of the Board of Directors, draft and recommend to the Board of Directors for adoption, Rules and Regulations for the use of the Association Property, and such amendments thereto as may from time to time seem desirable. No Rule, Regulation or amendment shall be effective unless and until adopted by the Board of Directors in accordance with the provisions of these By-Laws.

4. *Recreation Committee.* The Recreation Committee shall advise the Board of Directors on all matters pertaining to the recreational program of the Association and shall perform such other functions as the Board, in its discretion, determines.

5. *Maintenance Committee.* The Maintenance Committee shall advise the Board of Directors on all matters pertaining to the maintenance, repair or improvement of any Association Property and shall perform such other functions as the Board, in its discretion, determines.

6. *Publicity Committee.* The Publicity Committee shall inform the Members of all activities and functions of the Association and shall, after consulting with the Board of Directors, make such public releases and announcements as are in the best interests of the Association.

7. *Audit Committee.* The Audit Committee shall supervise the annual audit of the Associate's books and approve the annual budget and balance sheet statement to be presented to the Members at their Annual Meetings. The Treasurer shall be an ex officio member of the committee.

8. *Subcommittees.* With the exception of the Nominating Committee, each committee shall have the power to appoint a subcommittee from among its membership and may delegate to any subcommittee any of its powers, duties and functions.

9. *General Duties.* It shall be the duty of each committee to receive complaints from the Members on any matter involving Association functions, duties and activities within the field of its responsibility. It shall dispose of such complaints as it deems appropriate or refer them to such other committee, director or officer of the Association as is further concerned with the matter presented.

Article X

Books and Papers

The books, record and papers of the Association shall at all times, during reasonable business hours, be subject to inspection by any Member.

Article XI

Corporate Seal

The Association shall have a seal in circular form having within its circumference the words: Hunter's Ridge Maintenance Association, a Delaware corporation incorporated in 1989.

Article XII

Amendments

1. *Amendment Procedure.* These By-Laws may be amended, at a regular or special meeting of the Members, by a vote of the majority of a quorum of the Members present in person or by proxy, provided that those provisions of these By-Laws which are covered by the Certificate of Incorporation of

this Association may not be amended except as provided in the Certificate of Incorporation or applicable law; and provided further that any matter stated herein to be or which is in fact covered by the Documents may not be amended except as provided therein.

2. *Resolution of Conflict.* In the case of any conflict between the Certificate of Incorporation and these By-Laws, the Certificate of Incorporation shall control; and in the case of any conflict between the Documents and these By-Laws, the Documents will control.

DATED: April 9, 1990

Terry D. Neal

TERRY D. NEAL, Incorporator

WRITTEN CONSENT OF
THE DIRECTORS OF
HUNTER'S RIDGE MAINTENANCE ASSOCIATION

We, The Undersigned, Being all of the directors of HUNTER'S RIDGE MAINTENANCE ASSOCIATION, a Delaware corporation, (the "Association"), do hereby consent to the following action in lieu of a special meeting:

1. The election of the following persons a officers of the Association:

President	Dennis W. Neal
Vice-President	Garry A. Neal
Secretary	Terry D. Neal
Treasurer	Terry D. Neal

2. Adoption of the attached resolution with respect to the opening of a corporate bank account for the Association with Delaware Trust Company.

3. Adoption of the following resolution:

> **Resolved,** That the Organization Action in Writing of the incorporator, TERRY D. NEAL, dated April 9, 1990, including the By-laws of the Association adopted by him as a part of such action, be accepted and approved by the Board of Directors of the Association.

Dennis W. Neal
DENNIS W. NEAL

Garry A. Neal
GARRY A. NEAL

Terry D Neal
TERRY D. NEAL

Dated: April 9, 1990